

COMMERCIAL SOLUTIONS OPENING (CSO)

W918Z25SA001

Protecting Army Modernization and Supply Chains

The procedures outlined in this CSO apply to Areas of Interest posted under W918Z25SA001

SECTION 1 – INTRODUCTION

1.1 BACKGROUND

Secretary Hegseth identified that rebuilding the military by matching threats to capabilities, to include reviving the defense industrial base (DIB), is a top priority of the DoD. Strengthening the cybersecurity of the DIB and across complex supply chains is a critical component in ensuring the DoD can rapidly field emerging technologies to battlefield.

The DIB is critical in achieving our national security goals and maintaining our technology advantage, and small businesses play an especially crucial role. Small businesses are at the forefront of innovation, developing cutting-edge technologies that enhance DoD capabilities. Ensuring their cybersecurity protects these innovations from cyber threats and intellectual property theft, which allows DoD to benefit from the latest advancements. The DoD collaborates with small businesses to leverage their specialized expertise, and a strong cybersecurity posture ensures these partnerships can occur securely. Additionally, small businesses provide unique solutions that contribute to the DoD's competitive edge. Protecting their cybersecurity ensures they can continue to operate and innovate without disruption, maintaining the DoD's technological superiority. Their agility in adapting to emerging threats and technological changes further underscores the importance of safeguarding their cybersecurity.

Securing the supply chain is crucial for accelerating the delivery of warfighting capabilities. Complex supply chains that start in the DIB and extend to the battlefield must be protected to ensure the integrity and security of critical defense technologies. By identifying and mitigating risks from adversaries, such as cyber espionage and the insertion of malicious components, the DoD can prevent disruptions and compromises that could delay the production and deployment of essential military assets. This focus on supply chain visibility and security ultimately enhances the DoD's ability to rapidly field advanced capabilities, ensuring that the U.S. military remains prepared and resilient from the production line to the front lines.

Army Contracting Command- Aberdeen Proving Ground (ACC-APG) in support of the Office of the Deputy Assistant Secretary of the Army for Data Engineering Software (DASA DES) is publishing this Commercial Solutions Opening (CSO) in accordance with the Defense Federal

Acquisition Regulation Supplement Subpart 212.70 for the purpose of establishing a streamlined vehicle to award innovative commercial solutions in support of NCODE.

This CSO may result in the award of FAR Part 12 Contracts in response to solution briefs submitted against Areas of Interest (AOI). AOIs are focused topic(s) categories that will be published separately and posted to SAM.gov. Each AOI will reference this CSO number (W918Z25SA001) and have its own unique identifying number. All Solution Briefs submitted in response to any AOI will be governed by this CSO unless otherwise noted in the AOI.

This CSO will remain open until 06 March 2030. This CSO will be open in perpetuity until canceled by the U.S. Army. Proposals shall only be submitted in response to AOIs.

1.2 CSO PROCEDURES

This CSO is a competitive solicitation seeking proposals for innovative commercial technologies.

The CSO is soliciting Solution Briefs in response to AOIs. AOIs are focused topic(s) categories that will be published separately and posted on SAM.gov. All Solution Briefs submitted in response to any AOI will be governed by this CSO unless otherwise noted in the AOI.

AOIs are written in a much broader manner than standard Government solicitations to maximize latitude in creativity and application when approaching a problem and to allow for maximum participation from commercial vendors who may not be familiar with submitting proposals to Government solicitations.

The Government may post AOIs at any time. Interested Companies are encouraged to frequently check SAM.gov for new AOI postings.

SECTION 2 – GUIDELINES FOR SOLUTION BRIEFS, PITCHES, AND PROPOSALS

2.1 GENERAL GUIDELINES

1. Unnecessarily elaborate brochures or proposals are not desired.
2. When applicable, use of a diagram(s) or figure(s) to depict the essence of the proposed solution is strongly encouraged.
3. The Government will not reimburse Companies for any costs incurred while participating in Phases 1 through 3 of the CSO process. Additionally, the Government will not consider the costs associated with participating in Phases 1 through 3 as allowable charges and such costs should not be included within the ROM or any pricing information.

4. Companies may submit multiple Solution Briefs in response to any single AOI if each submission represents a separate and distinct concept. Individual Solution Briefs may only address one concept based on the stated AOI.
5. Technical data with military application may require appropriate approval, authorization, or license for lawful exportation.
6. All Solution Briefs, Pitches, and Proposals shall be submitted as UNCLASSIFIED or CUI. The Government team will handle this materiel as Controlled Unclassified Information (CUI) category "Proprietary Business Information" (PBI) Solution Briefs, Pitches, and Proposals containing data that is not to be disclosed to the public for any purpose or used by the Government except for evaluation purposes shall include the following sentences on the cover page:

“This [select one: Solution Brief, Pitch, or Proposal] includes data that shall not be disclosed outside the Government, except to non-Government personnel for evaluation purposes, and shall not be duplicated, used, or disclosed -- in whole or in part -- for any purpose other than to evaluate this submission. If, however, an contract is awarded to this Company as a result of -- or in connection with -- the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent agreed upon by both parties in the resulting contract. This restriction does not limit the Government's right to use the information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets [insert numbers or other identification of sheets]”

Each restricted data sheet should be marked as follows:

“Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal.”

7. Submissions must be submitted electronically via the instructions included in the AOI.
8. Submissions sent through other channels than required in the AOI or after the AOI period has ended will not be considered, reviewed nor evaluated.
9. Data Rights Assertions - the Solution Brief will identify any IP involved in the effort and associated restrictions on the Government's use of that IP.

2.2 PHASE 1 - SOLUTION BRIEF

Solution Briefs should not exceed 6 typed pages (11-point font or larger, single-sided, 8.5 x 11-inch pages with 1-inch margins) or, alternatively, Solution Briefs may take the form of briefing

slides which should not exceed 15 slides. The Government will not consider inserted textboxes/pop-ups or internet links to additional information as part of the Solution Brief and will not consider such information in its evaluation of solutions. Solution Briefs should include the following at a minimum:

- a. **Title Page (does not count against page limit)** - Company Name, Title, Date, Point of Contact Name, E-Mail Address, Phone, and Address. If registered in SAM.gov, include the Commercial and Government Entity (CAGE) code, and Unique Entity Identification (UEI) code.

Specifically identify the AOI Title and AOI number for which the Solution Brief is submitted.

- b. **Executive Summary (one page)**- Provide an executive summary of the technology.
- c. **Technology Concept**- Describe the unique aspects of your technology and the proposed work as it relates to the AOI. Identify whether the effort includes the pilot or demonstration of existing commercial technology (identified as commercially ready and viable technology), or the development of technology for potential defense application. If development or adaptation is proposed, identify a suggested path to mature the technology. Identify aspects which may be considered proprietary.
- d. **Company Viability**- Provide a brief overview of the Company. Provide a summary of current fundraising to date or a summary of the top line (gross sales/revenues). Provide a summary of product commercialization and go-to-market strategy.
- e. **Intellectual Property Statement/Agreement/Disclosures (does not count against page limit)**- As needed, include a separate disclosure for each company that would be a participant to the contract award.

The Government may be unable to evaluate the Solution Brief if a Company fails to provide the information requested above.

2.3 PHASE 2 – PITCH

Companies invited to Phase 2 will provide an in-person or virtual Pitch to demonstrate and provide further details on their proposed concept/technology/solution and the technical and business viability of the proposed solution. The Government may elect to use external market research during Phase 2 to evaluate a Company's viability. During the Phase 2 Pitch, the Company must also detail/address:

- a. **Estimated Price/Schedule-** Provide a rough order of magnitude (ROM) price and notional schedule.
- b. **Data Rights Assertions** - The Solution Brief will identify any intellectual property (IP) involved in the effort and associated restrictions on the Government's use of that IP. Additionally, identify any desired IP or data right assertions on the works developed under the performance of the project, if applicable.

In addition to these required areas, the Government may request the Company provide additional information/detail with respect to the Technology Concept information provided in the Phase 1 Solution Brief.

2.4. PHASE 3- PROPOSAL

Proposals are requested by invitation only. If your solution is selected for further evaluation, the contracting officer identified in the AOI will request a proposal. Companies invited to Phase 3 will develop and submit a full written proposal and negotiate appropriate terms and conditions governing the contract. Companies may discuss ideas and details of the proposal during the proposal writing process with the Government.

The proposal process can be modified by the contracting officer issuing the AOI, however the general process is provided below.

Each proposal submitted will generally be required to consist of two volumes: Volume 1 shall provide the technical proposal; Volume 2 shall address the price/cost/schedule portions of the proposal. Companies may propose their own internal terms and conditions (e.g., Service License Agreements (SLA) and/or End User License Agreements (EULA)) to be considered during negotiations with the Government. Companies should note that there are certain terms and conditions the Government is unable to accept. However, projects awarded through the CSO are flexible to adopt customary industry standards where it is otherwise legal and where it meets the Government's needs.

Volume 1 Technical Proposal

Title Page- Company Name, Title, Point of Contact Name, Date, E-Mail Address, Phone, and Address and any subcontractors or team members. If registered in SAM.gov, include the Commercial and Government Entity (CAGE) code, and Unique Entity Identification (UEI) code.

Propose a Technical Approach- Describe the background and objectives of the proposed work, the approach, deliverables, and the resources needed to execute it. Include the nature and extent of the anticipated results. Include ancillary and operational issues such as certifications,

algorithms, and any engineering/software development methodologies to be used. This proposal must include a draft Performance Work Statement (PWS) identifying the work to be performed and the deliverables. The development of a final, agreed upon PWS will be a collaborative effort between the Company and the Government. Provide an agile project plan and schedule with objectives and key results that offers flexibility and that outlines the various phases of work to be accomplished within the proposed period of performance. You may refer to the Solution Brief that prompted this proposal request, but do not duplicate it.

Government Support Required - Identify the type of support, if any, the Company requests of the Government in general such as facilities, equipment, data, and information or materials.

Volume 2 Price Proposal

The Company shall propose a total price, broken down by phase/milestone to complete the effort and provide any other data or supporting information that is necessary for the determination of a fair and reasonable price. This can include, but is not limited to, commercial price catalog or other proprietary information to help the Government assess project cost.

SECTION 3 – EVALUATION APPROACH

3.1 PHASE 1 - SOLUTION BRIEF

All solution briefs correctly submitted in response to an AOI will be evaluated against the stated criteria below.

- a. Relevance of the Solution Brief in addressing the AOI;
- b. Whether the Company's approach and/or underlying technology is unique, underutilized in the Government, and/or innovative to Government application. In addition, whether the Government finds this approach and/or underlying technology to be a compelling solution to the AOI problem statement.
- c. Technical Merit and feasibility of the solution to address Government AOI problem statement.

Additional technical evaluation criteria specific to a project may be used. In these instances, the additional criteria will be posted within the AOI announcement.

The Government will not further evaluate Solution Briefs determined to not be relevant to the AOI for which a Solution Brief is submitted.

Solution Briefs will be evaluated based on the merit of the proposed concept in addressing the AOI, not against other Solution Briefs submitted in response to the same AOI.

ACC-APG routinely receives more Solution Briefs than has the resources to award. All submissions will be fairly evaluated, however, only a select few Companies with the most compelling solutions will be invited to Phase 2. The Government reserves the right to limit the number of Companies invited to Phase 2. Solution Briefs that are chosen for Phase 2 will be notified in writing as soon as practicable.

Solution Briefs that are not of interest to the Government at this time will be notified with a non-selection letter as soon as practicable. The non-selection letter will give a general overview of why the Government did not choose the solution for Phase 2. The Government will not provide feedback beyond the non-selection letter.

3.1 PHASE 2 – PITCH

Individual pitches will be evaluated against the following factors:

- a. Relevance of the Pitch in addressing the AOI;
- b. Whether the solution has technical merit, adequately addresses the Government need and is feasible;
- c. Company viability;
- d. Whether the Company's approach is unique, underutilized in the Government, and/or innovative to Government application and is a compelling solution to the AOI problem statement;
- e. Whether the ROM is affordable;
- f. Whether the notional schedule is acceptable; and
- g. The potential impact of data rights assertions.

Individual pitches will be evaluated based on the merit of the proposed concept in addressing the AOI and the factors above, not against any other Pitches held under the same AOL Pitch submissions will be valid for 180 calendar days after the pitch date.

Upon completion of evaluations, the Government will notify the Company that:

- a. The proposed concept/technology/solution has been selected for possible contract award the Company is invited to submit a full proposal; or
- b. The proposed concept/technology/solution is not of interest to the Government; or

- c. The proposed concept/technology/solution is of interest, but not eligible for a proposal due to the availability of Government resources.

If the proposed concept/technology/solution is of interest, but not eligible for a proposal due to availability of Government resources, the Company may be contacted with a request to respond to an RPP within 180 calendar days from the pitch date. If the Government does not send an RPP to the Company within 180 calendar days from the pitch date, the Company will no longer be eligible for an award under the associated AOI.

In either circumstance where a Company is not invited to submit RPP at the end of Phase 2, the Government will notify the Company with a non-selection letter. The non-selection letter will give a summary of why the Government did not choose the solution for Phase 3. The Government generally will not provide significant feedback beyond the non-selection letter.

3.2 PHASE 3 – PROPOSAL

Proposals will be evaluated by Government subject matter experts using the following criteria:

- a. Whether the proposed solution enhances and/or accelerates innovative development contributing toward mission accomplishment.
- b. Technical merit of the proposal with an emphasis on innovative solutions. Additionally, technical maturity, feasibility, and achievability will be considered. And if applicable, the degree to which a defined commercialization path or strategy exists.
- c. Realism and/or adequacy of the proposal performance schedule.
- d. Reasonableness of the price.

SECTION 4 – EVALUATION APPROACH

Upon favorable review and available funds, the Government may choose to make an award. The Contracting Officer will negotiate directly with the Company on the terms and conditions of the Contract, including payments, and will execute the Contract on behalf of the Government. Only a Contracting Officer has the authority to enter into or modify a binding contract on behalf of the Government.

Companies must register in the System for Award Management (SAM) and have a Unique Entity Identification (UEI) to receive an award. Companies are advised to commence SAM registration upon receipt of an RPP and must maintain registration in SAM throughout phase 3 of the CSO process.

Companies are required to maintain registration in SAM throughout the period of performance of the contract.

Companies must also register in the prescribed Government invoicing system (e.g. Wide Area Work Flow). The Contracts Officer can assist those Companies from whom a full proposal is requested.

The Company must be determined to be responsible by the Contracting Officer and must not be suspended or debarred from award by the Federal Government nor be prohibited by Presidential Executive Order and/or law from receiving an award.

Receipt of a RPP does not guarantee that a Company will receive an award. The Government reserves the right, at any point prior to award of a Contract to cancel the RPP.

SECTION 5 - NON-GOVERNMENT ADVISORS

Non-Government advisors may be used in the evaluation of Solution Briefs, Pitches and during proposal development and negotiations. Non-Government advisors will have signed non-disclosure agreements (NDAs) with the Government. Submission of an offer under this CSO will constitute a grant of authority by the submitting Company to the Government to allow the use of non-Government advisors to participate in evaluations of all phases of the CSO process. If non-Government advisors are used during evaluations, the Government will provide notice of the non-Government advisors in the individual AOI and/or invitations to phase 2 and/or phase 3 of the CSO process, as applicable.

The Government understands that information provided in response to this CSO is presented in confidence and may contain trade secret or commercial or financial information, and it agrees to protect such information from unauthorized disclosure to the maximum extent permitted or required by Law, to include:

- a. 18 U.S.C. 1905 (Trade Secrets Act);
- b. 18 U.S.C. 1831 et seq. (Economic Espionage Act);
- c. 5 U.S.C. 552(b)(4) (Freedom of Information Act);
- d. Executive Order 12600 (Pre-disclosure Notification Procedures for Confidential Commercial Information); and,
- e. Any other statute, regulation, or requirement applicable to Government employees.

The USG team will treat all proposal information as CUI-PBI. This category includes information that is related to business proposals, bids, and other proprietary business data that is not intended for public release and requires protection due to its sensitive nature. The CUI designation helps ensure that such information is handled and safeguarded appropriately to prevent unauthorized access and disclosure.

SECTION 6-ADDITIONAL INFORMATION

6.1 CONGRESSIONAL NOTIFICATION- ALL CSO AWARDS

IAW PGI 212.7005 Congressional notification, notification to the congressional defense committees shall be made no later than 45 days after the award of a contract valued at more than \$100 million resulting from a CSO. The notification shall include:

- (1) A description of the innovative commercial product, commercial service, or technology acquired;
- (2) A description of the requirement, capability gap, or potential technological advancement with respect to which the innovative commercial product, commercial service, or technology acquired provides a solution or a potential new capability;
- (3) The contract award amount; and
- (4) The contractor awarded the contract.

6.2 SECURITY CLEARANCES

If awarded a contract under the procedures of this CSO, the Company will be responsible for providing personnel with appropriate security clearances to ensure compliance with Government security regulations. The Company shall fully cooperate on all security checks and investigations by furnishing requested information to verify the Company employee's eligibility for any required clearance.

The Company's proposed solution (e.g., data, integration with supporting DoD Infrastructure, architecture) will determine the personnel security clearance and/or facility clearance requirements for the prototype effort. The Government will provide additional details regarding the personnel security clearance and/or facility clearance requirements in the individual AOI.

6.3 DATA STORAGE

To protect against seizure and improper use by non-United States (U.S.) persons and government entities, all data stored and processed by/for the DoD must reside in a facility under the exclusive legal jurisdiction of the U.S. If awarded a contract under the procedures of this CSO, the Company will be required to maintain all government data that is not physically located on DoD premises within the 50 States, the District of Columbia, and outlying areas of the U.S., unless otherwise authorized by the responsible Government, as described in DFARS 252.204-7012 (FedRAMP) and DFARS 252.225-7048 (ITAR).

During the performance of a contract, if Government data is co-located with the non-Government data, the Company will be required to isolate the Government data into an environment where it may be reviewed, scanned, or forensically evaluated in a secure space with access limited to authorized Government personnel identified by the Contracting Officer, and without the Company's involvement. The Company will be required to record all physical access to the cloud storage facilities and all logical access to the Government data. This may include the entrant's name, role, purpose, account identification, entry and exit time. The Company will be required to provide such records to the Contracting Officer or designee in accordance with the contract or upon request to comply with federal authorities.

6.4 EXPORT CONTROL

Research findings and technology developments arising from a resulting contract may constitute a significant enhancement to the national defense and to the economic vitality of the United States. As such, in the conduct of all work related to this effort, the recipient will be required to comply strictly with the Arms Export Control Act, 22 U.S.C. § 2751-2794, including the International Traffic in Arms Regulation (ITAR), 22 C.F.R. § 120 et seq.; the Export Administration Act, 50 U.S.C. app. § 2401-2420; the National Industrial Security Program Operating Manual, 32 CFR § 117; and the Department of Commerce Export Regulation, 15 CFR § 730-774.